

civil litigation in an appropriate manner without unnecessary or unwarranted delay. Such is particularly true given the representations made by Plaintiff as to his age and health.

For these reasons, the motion to stay is denied. The parties remain free to file appropriate motions should they believe that discovery is improperly being propounded or withheld.

6. CU0002305 Jason Christ v. Jordan Hannah

Judge Tice-Raskin issued a tentative ruling prior to the March 6, 2026 hearing. It is restated, in relevant part, here.

Plaintiff's December 8, 2025, motion to strike the answer and cross-complaint is denied.

Defendant urges the Court to deny the motion because no supporting memorandum of points and authorities was filed by Plaintiff. The Court agrees.

Cal. Rules of Court, rule 3.113 "requires motions to be supported by memoranda containing 'a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced,'" and provides that a motion's failure to provide such a memorandum can be construed "as an admission that the motion ... is not meritorious...." *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 931, *quoting* Rule 3.1113(b) & (a). "Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." *Id.* at 934.

Accordingly, the motion is denied.

7. CU0002304 Jason Christ v. Justis Barquilla

Judge Tice-Raskin issued a tentative ruling prior to the March 6, 2026 hearing. It is restated, in relevant part, here.

The December 5, 2025, motion of Defendant Nationstar Mortgage LLC and America West Lender Services LLC to strike Plaintiff's first amended complaint ("FAC") is granted. Plaintiff's complaint filed on August 7, 2025 shall proceed as the operative complaint in this matter.

Defendants assert Plaintiff's FAC was not filed in conformity with the laws of the state and should be stricken. The Court agrees.

"Ordinarily, an amended complaint may be filed without leave of court only before responsive pleadings are filed." *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 175, citing Code of Civ. Proc. § 472. "After the responsive pleadings are filed an amendment to a complaint ... requires leave of court." *Ibid.*, citing Code of Civ. Proc. § 473 (a).

Here, Plaintiff filed the FAC without leave of the Court after Defendants had answered the initial complaint. As such, it was not filed in conformity with the Rules of Procedure and is subject to striking under Code of Civil Procedure section 436(b). See *Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528 (“This provision is commonly invoked to challenge pleadings filed in violation of a ... requirement of prior leave of court.”)

Plaintiff has not opposed the motion and has made no showing that she had authority to file the FAC. The Court is aware that during the meet and confer process Plaintiff suggested the FAC filed on November 21, 2025 “was submitted pursuant to...judicial authorization” permitted to correct the defect of being unverified. Chaffin Decl., Exh. A, pg. 2. In the court’s November 14, 2025 order denying Plaintiff’s request for preliminary injunction, the court held, “[t]he verified complaint, in fact, does not include a verification; it is not considered as evidence.... To the extent that Plaintiff seeks other relief, she must file and notice an appropriate motion for the same.” Nov. 14, 2025 Order, 2:5-10. That order did not, in any way, authorize Plaintiff to file a FAC after Defendant filed an answer.

Defendants’ motion to strike is granted.

8. CU22-086174 Michael Robert Pasner vs. Song Kowbel

Judge Tice-Raskin issued a tentative ruling prior to the February 6, 2026 hearing. It is restated here.

Petitioner Michael Pasner’s motion for attorneys’ fees and costs is granted.

Code of Civil Procedure section 527.6(s) provides, “The prevailing party in an action brought pursuant to this section [for a civil harassment order] may be awarded court costs and attorney’s fees, if any.” “The recovery of attorney fees under subdivision (s) of section 527.6 is committed to the trial court’s discretion. ... The Legislature’s use of the word “may” plainly indicates the issues of *whether to award any fees and, if awarded, the amount recovered* are committed to the trial court’s discretion. *Wash v. Banda-Wash* (2025) 108 Cal.App.5th 561, 568 (italics added), *citing Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802.

Courts utilize Code of Civil Procedure section 1032 as guidance for determining who is the prevailing party for purposes of section 527.6. *Elster v. Friedman* (1989) 211 Cal. App. 3d 1439, 1443.

Code of Civil Procedure section 1032 . . . states in part: "(a) ... (4) 'Prevailing party' includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. *When any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court*

Ibid. (italics added).